

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA

Colonial Manor MHC Holdings, LLC
Plaintiff,

vs.

Case No.: 2022-CC-4105

Iris Williams,
Jeanie Grace Diccico,
Howard Vincent Blackwell,
Defendants.

_____/

**THE DEFENDANT IRIS WILLIAMS' MOTION FOR AN AWARD OF
ATTORNEYS' FEES AND COSTS**

COMES NOW the Defendant Iris Williams by and through her undersigned counsel, and hereby files her motion for an award of attorneys' fees and costs as to the complaint, and as grounds therefore would state as follows:

1. The Plaintiff had filed a complaint that in Count I was seeking the possession of a mobile home lot, seeking damages in Count II, and enforcing a Landlord's lien in Count III.
2. The instant case was dismissed as to this Defendant.
3. The court order authorizing the amended complaint and dismissing this Defendant was rendered on July 28, 2022.
4. This motion for attorneys' fees was filed within thirty [30] days of the order of dismissal.

5. The Defendant Iris Williams was the owner of the mobile home.
6. The Defendant Iris Williams was the prevailing party, and she should be awarded her reasonable attorneys' fees and costs as she was required to employ legal counsel to contest and litigate this matter and to pay him a reasonable fee.
7. Florida Statute 723.068 Attorney's fees. Stated: Except as provided in s. 723.037, in any proceeding between private parties to enforce provisions of this chapter, the prevailing party is entitled to a reasonable attorney's fee. Also, the Prospectus may provide for an award of attorneys' fees.
8. The complaint was sixty (60) paragraphs in length.
9. The complaint involved multiple alleged complicated factual and legal issues.
10. The Plaintiff also claimed a landlord's lien pursuant to Florida statute §713.691 and §713.77 and §45.031.
11. The complaint alleged involved multiple complicated factual and alleged legal violations by this Defendant.
12. The defense to the complaint involved multiple potential complicated factual and legal defenses.

13. The potential consequences of the complaint and request for attorneys' fees would potentially bankrupt this Defendant.

14. The Defendant should be awarded her reasonable attorneys' fees and costs as she was the prevailing party.

WHEREFORE, the Defendant respectfully requests the entry of an order awarding the Defendant her reasonable attorneys' fees and costs. The Defendant should be awarded her reasonable attorneys' fees and costs.

/s/ John P. Fleck, Jr.

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CERTIFICATE OF SERVICE

I hereby certify that a true copy was sent electronically filed with the Manatee County Clerk of Court using the Florida Courts e-filing Portal that will send a notice of electronic filing to all attorneys of record on August 23, 2022.

/s/ John P. Fleck, Jr.

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